

Akhilesh Singh v. Managing Director, Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 25 May 2022 · WRIT - C No. - 6947 of 2022 · **Writ disposed without opinion on merits, with liberty to file a Para 6.8 objection within four weeks, to be decided with a hearing within four weeks thereafter.**

HEADNOTE

A writ seeking certiorari against a recovery certificate was disposed of without any opinion on merits. The consumer was left at liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks, along with a certified copy of the order. If filed in time, the objection is to be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing.

FACTUAL SUMMARY

Akhilesh Singh filed Writ-C No. 6947 of 2022 before the Allahabad High Court to quash a recovery certificate dated 29 September 2021 issued by respondent no. 2 of Dakshinanchal Vidyut Vitran Nigam Limited. On instructions, counsel for respondent no. 2 told the Court that the petitioner could file an objection against the impugned demand and that it would be decided according to law within a time-bound period. Counsel for the petitioner, the State, and the licensee were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Para 6.8 objection as the route against a recovery certificate

HOLDING

A writ challenging a recovery certificate may be disposed of without any opinion on merits by permitting the consumer to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the concerned respondent within four weeks. If the objection is filed in time, that respondent must decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing. ¶ 3-4

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ against the recovery certificate was disposed of without examining merits, leaving the petitioner to file a Para 6.8 objection before respondent no. 2 within four weeks, to be decided with a hearing within four weeks thereafter. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY OF THE RECOVERY CERTIFICATE DATED 29.09.2021

The Court expressed no opinion on merits and left the objection to be decided by respondent no. 2. ¶ 4